

HOUSE No. 962

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth I. Gordon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the use of chlorpyrifos in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>1/14/2025</i>

HOUSE No. 962

By Representative Gordon of Bedford, a petition (accompanied by bill, House, No. 962) of Kenneth I. Gordon relative to the use of chlorpyrifos in the Commonwealth. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the use of chlorpyrifos in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 132B of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after section 6K the following section:-

3 Section 6L. (a) After December 31, 2026, no person, firm, partnership, association,
4 limited liability company, or corporation shall distribute, sell, offer for sale or use chlorpyrifos or
5 any products containing chlorpyrifos for use on agricultural land or crops within the
6 Commonwealth of Massachusetts without (i) license issued by the State or any agency of the
7 federal government to conduct chlorpyrifos research; or (ii) a permit issued by the State to apply
8 chlorpyrifos because there is no viable alternative to the use.

9 (b) For the purposes of this section, chlorpyrifos shall mean a product containing the
10 broad-spectrum chlorinated organophosphate pesticide also known as O, O-diethyl O-(3,5,6-
11 trichloro-2-pyridyl) phosphorothioate.

(c) The department of food and agriculture is authorized to promulgate such rules and regulations as it shall deem necessary to implement the provisions in this section.

SECTION 2. There shall be a task force to study the impact of using chlorpyrifos in non-agricultural settings in Massachusetts, hereinafter referred to as the task force. The task force shall be co-chaired by the house and senate chairs of the joint committee on environment, natural resources, and agriculture and shall include: the commissioner of the department of public health, or a designee; the commissioner of the department of environmental protection, or a designee; the commissioner of the department of conservation and recreation, or a designee; and representatives from each of the following organizations as appointed by the governor: the New England Pest Management Association, Inc., the Massachusetts Audubon Society, Conservation Law Foundation, and the Union of Concerned Scientists; 2 scientists appointed by the President of the University of Massachusetts; 2 persons to be appointed by the Governor.

The task force shall study non-agricultural uses of chlorpyrifos including, but not limited to, its use on golf courses, turf, greenhouses, and non-structural wood treatments, mosquito abatement, and its use as a mosquito adulticide and in roach and ant bait stations in child-resistant packaging. The task force shall consider the ecological and human health impacts of such applications, investigate alternative methods of pest control for such uses, and make policy recommendations based on the findings.

The task force shall submit its recommendations to the governor, the clerks of the house of representatives and the senate, and the chairs of the joint committee on environment, natural resources, and agriculture on or before December 31, 2026.